

TENTATIVE RULINGS

DEPT C14

Judge Andre De La Cruz

Court Reporters: Official court reporters (*i.e.*, court reporters employed by the Court) are not typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- [Court Reporter Interpreter Services](#).

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website no later than Friday afternoon immediately preceding Monday's hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Moreover, tentative rulings may not be posted in every case.

Please do not call the department for tentative rulings if tentative rulings have not been posted.

The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted. Further, a motion may not be taken off calendar once a tentative ruling has been posted unless the entire action has been dismissed.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk by sending an email to: ctownsend@occourts.org and copied to eveloz@occourts.org. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

When a proposed order is required, even if motion is unopposed, the parties are ordered to submit it in two formats: (1) one draft in MS Word (*.doc or *.docx); and (2) one draft in PDF format with all attachments/exhibits attached thereto in accordance with Cal. R. Ct. 3.1312(c)(1) and (2).

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. *See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.

Appearances: Department C14 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP § 367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing.

Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information—Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") will be strictly enforced. It is your responsibility to ensure that your audio and video are functioning properly prior to your hearing.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP § 367.75 and OCLR 375.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
September 25, 2023

#	Case Name	Tentative
1	Adduru vs. Bright 2022-01290560	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Form Interrogatories filed by Sika Corporation and Dolen Trust LSR on 5/19/23 Continued to 10/9/2023
2	Blauser vs. Dubin 2021-01207635	1. Demurrer to Amended Cross-Complaint 2. Motion to Strike filed by Bettie Blauser on 5/16/23 Continued to 10/9/2023
3	Fedex Corporate Services, Inc. vs. Ketoro, Inc. 2022-01248149	Motion to Be Relieved as Counsel of Record filed by counsel for Ketoro, Inc. on 5/18/23 The unopposed Motion of attorney Kaden J. Kennedy of Buffington Law Firm, P.C. to be relieved as counsel for Defendant Ketoro, Inc. is GRANTED. Service on the client and opposing counsel was proper, and all required forms were filed pursuant to California Rules of Court, rule 3.1362. A corporation must be represented in court by an attorney. <i>CLD Constr., Inc. v. City of San Ramon</i>, 120 Cal. App. 4th 1141, 1150 (2004) (“[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”).

		Defendant Ketoro, Inc. is a corporation and therefore must retain new counsel. The order will take effect once moving counsel files proof of service of this order on the client. Moving attorney to give notice.
4	Doe vs. Orange Unified School District 2021-01176963	Motion to Be Relieved as Counsel of Record filed by counsel for Jane P. Doe on 8/15/23 Manly, Stewart & Finaldi ("Moving Attorney") moves to be relieved as counsel of record for Plaintiff Jane PH Doe, by and through GAL Jane CT Doe. The motion is unopposed. Moving Attorney has stated a basis for permissive withdrawal under Rules of Professional Conduct, Rule 1.16. The motion satisfies the notice, declaration, and proposed order requirements of Cal. Rules of Court, Rule 3.1362. The motion is GRANTED. The Court will interlineate Paragraph 9 of the order (MC-053; Judicial Council Form) with the following trial date, time and location: 2/26/24 at 8:30 am in Dept C14. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. <i>See</i> Cal. Rules of Court, Rule 3.1362(e). Moving Attorney shall give notice.

5	Lowther vs. Reyes Coca-Cola Bottling, L.L.C. 2022-01269873	1. Demurrer to Amended Complaint filed by The Coca-Cola Company, Alexandra Brinson on 5/3/23 2. Case Management Conference Defendants Alexandra Brinson and The Coca-Cola Company's (together, "Defendants") unopposed Demurrer to the First Amended Complaint ("FAC") is SUSTAINED without leave to amend. Defendants' request to deem Plaintiff a vexatious litigant is DENIED. I. Demurrer The failure to oppose a demurrer may be construed as having abandoned the claims. <i>See Herzberg v. County of Plumas</i>, 133 Cal. App. 4th 1, 20 (2005) ("Plaintiffs did not oppose the County's demurrer to this portion of their seventh cause of action and have submitted no argument on the issue in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue"). In addition, it is axiomatic the failure to challenge a contention in a brief results in the concession of that argument. <i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i>, 78 Cal. App. 4th 562, 566 (2000) ("By failing to argue the contrary, plaintiffs concede this issue"); <i>Westside Center Associates v. Safeway Stores 23, Inc.</i>, 42 Cal. App. 4th 507, 529 (1996) ("failure to address the threshold question . . . effectively concedes that issue and renders its remaining arguments moot"); <i>Glendale Redevelopment Agency v. Parks</i>, 18 Cal. App. 4th 1409, 1424 (1993) (issue is impliedly conceded by failing to address it).
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Here, no opposition to the demurrer has been filed; and therefore, the Court deems the motion unopposed and construes the failure to oppose the demurrer as an abandonment of Plaintiff's claims.

In addition, the demurrer is sustained on the merits. The FAC asserts a single cause of action for defamation. The statute of limitations for filing a defamation claim is one year. *See* Code Civ. Proc. § 340. "[I]n general a cause of action in tort accrues at the time of injury, and a cause of action for defamation accrues at the time the defamatory statement is 'published.'" *Shively v. Bozanich*, 31 Cal. 4th 1230, 1247 (2003), as modified (Dec. 22, 2003). "[T]he general rule is that publication occurs when the defendant communicates the defamatory statement to a person other than the person being defamed." *Id.*

The FAC alleges that Defendant Brinson made false statements on 8/12/20 to the client of Plaintiff's then-employer. *See* FAC p.2. The FAC further alleges that on 8/14/20, the defamatory statement "was passed on," resulting in Plaintiff being terminated from his employment. *Id.* at 3. Thus, the one-year statute of limitation ran on 8/12/21. However, this action was not filed until 7/14/22 (nearly a year late). Further, there are no facts alleged in the FAC to support a delayed discovery argument.

Because it does not appear that Plaintiff can amend to cure the deficiencies in the FAC, the demurrer is sustained without leave to amend.

II. Vexatious Litigant

Defendants also request that Plaintiff be deemed a vexatious litigant. A litigant may be declared “vexatious” where “[a]fter a litigation has been finally determined against the person, [he or she] repeatedly relitigates or attempts to relitigate, in propria persona, either: (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined; or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined.” *See* Code Civ. Proc. § 391(b)(2).

Defendants contend that Plaintiff should be deemed a vexatious litigant based on the filing of this action and of a prior action filed in the United States District Court for the Central District of California on 2/11/22. Middleton Decl. ¶ 3. The action was summarily dismissed by the federal court on 2/17/22 for lack of subject matter jurisdiction. *Id.*

The Court declines to deem Plaintiff a vexatious litigant at this time. The purpose of the vexatious litigant statutes is to prevent future harm based on a litigant's past behavior. *See, e.g., Goodrich v. Sierra Vista Reg'l Med. Ctr.*, 246 Cal. App. 4th 1260, 1267 (2016). However, the record does not presently indicate that there is a “past pattern or practice on the part of the [Plaintiff] that carries the risk of repetition in the case at hand.” *Id. citing Holcomb v. U.S. Bank Nat. Assn.*, 129 Cal. App. 4th 1494, 1505 (2005).

		Indeed, Defendants have not provided the court with sufficient information to even determine the extent to which the claims in the prior federal court case overlap with the claims presented herein. Further, to the extent the claims in both actions are the same, this later action was presumably filed simply because the claims could not be heard in federal court. Defendants to give notice.
6	San Bernardino County vs. Marina Point Development Associates 2022-01294089	Motion for Summary Judgment and/or Adjudication filed by San Bernardino County on 4/18/23 Plaintiff San Bernardino County's (the "County") Motion for Summary Judgment or, in the Alternative, Summary Adjudication is DENIED. The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. <i>Aguilar v. Atlantic Richfield Co.</i>, 25 Cal. 4th 826, 849-850 (2001). A Plaintiff has met his or her burden of showing there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Cal. Code Civ. Proc. § 437c(p)(1). Once the Plaintiff has met that burden, the burden shifts to the Defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. <i>Id.</i>

Here, the County seeks summary judgment on its first amended complaint against defendants Marina Point Development Associates and Irving Okovita (together, “Defendants”) for two counts of indemnification.

The County contends that the parties entered into written agreements that require Defendants to indemnify the County from any claim attacking the County’s approval of revisions to a previously approved plan for Defendants’ development of a resort at Big Bear Lake (the “Minor Revision”).

On 10/14/20, the County and Defendants were ordered jointly and severally to pay \$139,920.18 in attorneys’ fees and costs to two environmental interest groups who successfully challenged the County’s approval of the Minor Revision in San Bernardino County Case No. CIVDS1512175. *See* UF 12-15. The County paid the full amount on 2/24/21. *See* UF 15. The County then tendered a demand to Defendants for reimbursement, but Defendants refused. *See* UF 16.

Defendants do not dispute the existence of the indemnity agreements, but instead assert that the agreements cannot be enforced due to the County’s unclean hands, active negligence, and failure to cooperate fully in the defense of the underlying action. More specifically, Defendants contend that they made it clear to the County that they would not pursue the Minor Revision application if the County required public notice or a discretionary approval rather than an administrative or ministerial approval. *See* AUF 2. Defendants

were informed by the County that the proposed change would be subject to administrative approval rather than discretionary approval. *See* AUF 4. In reliance on these representations, Defendants pursued the application. Had Defendants known that the representations were false, they would not have pursued the approval. *See* AUF 8.

Indemnification agreements such as those at issue here are authorized by Government Code § 66474.9. The County argues that defenses such as unclean hands do not apply to indemnification agreements in this context. In support of this proposition, the County cites three cases: *Topanga Association for a Scenic Community v. County of Los Angeles*, 214 Cal. App. 3d 1348, 1364-65 (1989); *San Bernardino Valley Audubon Society, Inc. v. County of San Bernardino*, 155 Cal. App. 3d 738, 755-757 (1984); and *Mejia v. City of Los Angeles*, 156 Cal. App. 4th 151, 162 (2007).

None of the cited cases, however, involve allegations that the public agency made affirmative misrepresentations as Defendants assert here. Rather, each of the cited cases involved presumably unintentional mistakes. For example, the court in *Topanga Association* found that the cost of “misfeasance” such as “administrative lapses, failure and omissions” could be transferred to the developer. However, there were no allegations of affirmative misrepresentations before it.

In addition, *San Bernardino Valley* and *Mejia* do not involve Government Code § 66474.9 at all. They instead interpret Code of Civil Procedure section 1021.5, which codifies the

“Private Attorney General Doctrine.” In both of those cases, the courts allowed a fee award against the developer as the “real party in interest.” However, as stated above, there were no allegations that the public agencies in those cases had engaged in the sort of conduct alleged here.

While this Court has been unable to locate any published decisions other than *Topanga Association* that provide any interpretation of Government Code section 66474.9, the Court is not persuaded by any of the authorities presented herein that Defendants’ defenses are inapplicable in the context of an indemnity agreement authorized by the aforementioned section.

The County further contends that Defendants have not raised a triable issue of fact as to their unclean hands and other defenses.

Whether the doctrine of unclean hands applies is a question of fact. *CrossTalk Productions, Inc. v. Jacobson*, 65 Cal. App. 4th 631, 639 (1998). A determination as to whether the particular misconduct is a bar to the alleged claim for relief depends on: (1) analogous case law; (2) the nature of the misconduct; and (3) the relationship of the misconduct to the claimed injuries. *Kendall-Jackson Winery, Ltd. v. Superior Court*, 76 Cal. App. 4th 970, 978–79 (1999) (citing *Blain v. Doctor’s Co.*, 222 Cal. App. 3d 1048, 1060 (1990)).

Here, Defendants have raised triable issues of fact, *see supra*, as to whether the County’s

		conduct during the Minor Revision approval process supports a defense of unclean hands. As the finding of a single issue of triable fact is dispositive, the Court does not consider whether Defendants have raised triable issues of fact as to their other defenses. The County's objections to ¶¶ 2, 4, and 8 of the Okovita declaration are OVERRULED. The proffered statements are relevant and Undisputed Fact No. 4 additionally falls within the hearsay exception for admission of a party. <i>See</i> Cal. Evid. Code § 1220. Moving Party to give notice.
7	Skendzic vs. S-H MRE/HCP OPCO Ventures, LLC 2023-01320924	1. Motion for Protective Order 2. Motion for Protetive Order filed by MBK Senior Living, LLC, MSL Community Management, LLC, S-H MRE/HCP Opco Ventures, LLC, S-H Huntington Terrace Opco LLC on 8/3/23 Off Calendar
8	Verkuyl vs. FCA US, LLC 2022-01297073	Motion to Compel Production filed by Gerald Verkuyl on 5/24/23 Withdrawn
9	Mikaele vs. Sundance Fire Protection California Inc 2023-01334461	Demurrer to Answer filed by Lelandra Mikaele on 8/22/23 The Demurrer to Answer filed by Plaintiff, Lelandra Mikaele, is DENIED AS MOOT. The demurrer is directed towards the Answer filed by Defendants, Sundance Fire Protection California, Inc. and Don Blunt. On September

		13, 2023, Defendants filed an Amended Answer to Plaintiff's Complaint, (ROA 26), and served the same on September 15, 2023 (ROA 28). Defendants to give notice.
10	White vs. Bella Terra Pad, LLC. 2020-01174798	Motion to Be Relieved as Counsel of Record filed by counsel for Blair White on 8/24/23 The Motion to Be Relieved as Counsel of Record filed by Raymond Ghermezian, Esq., Counsel of Record for Plaintiff, Blair White, is GRANTED on the condition that Moving Counsel submit an updated Proposed Order. Motions to be relieved as counsel pursuant to Code of Civil Procedure section 284(2) are governed by California Rules of Court, Rule 3.1362. All of the requirements of California Rules of Court, Rule 3.1362 have been sufficiently met. Moving Counsel has utilized the requisite Judicial Council Forms (MC-051, MC-052, and MC-053), has filed the Proposed Order, has served all parties and the client and has demonstrated adequate grounds for granting the motion. Moving Counsel states: There has been irreconcilable differences of opinion between Plaintiff and Plaintiff's counsel leading to a complete breakdown in the attorney-client relationship. Specifically, certain significant issues surfaced related to the prosecution of this case, which to date remain unresolved. Current counsel and

plaintiff are at an impasse with respect to these issues. Consequently, a dispute has arisen as to whether plaintiff's counsel can proceed as attorney of record. The issues in question are fundamental and crucial to the outcome of this case. Therefore, it is respectfully submitted that attorneys be relieved as counsel of record due to Justifiable cause. Present counsel has informed Plaintiff of this position and have requested Plaintiff agree to relieve counsel due to Justifiable cause. Plaintiff, however, has been unresponsive to this request, thereby requiring the instant motion. Ghermezian Decl., ¶ 2, MC-052.

Notwithstanding the foregoing, the Court notes that subsequent to filing of the instant motion, a motion for terminating sanctions was filed that has a hearing date set for October 16, 2023.

The order relieving counsel, Raymond Ghermezian, as Counsel of Record for Plaintiff, Blair White, is effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. Cal. Rules of Court, rule 3.1362(e).

By the time of the hearing on the instant motion to be relieved, Moving Counsel is to lodge an updated Proposed Order that reflects all currently pending hearing dates, as well as the Court's order above in paragraph 5 of the Proposed Order.

Moving Counsel to give notice.

11	Giunta vs. Integrity Global Security 2022-01244675	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production filed by Reginald Giunta on 8/25/23 Plaintiff, Reginald Giunta's Motions to Compel Answers to the First Set of Form Interrogatories – General (ROA 54), Special Interrogatories (ROA 50), and Requests for Production of Documents (ROA 46) from Defendant, Integrity Global Security, are GRANTED. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. Code Civ. Proc. §§ 2030.290(b); 2031.300(b). By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. Code Civ. Proc. § 2030.290(a); <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i>, 148 Cal. App. 4th 390, 408 (2007); <i>Leach v. Superior Court</i>, 111 Cal. App. 3d 902, 906 (1980). Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. Code Civ. Proc. § 2031.300(a). "[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who
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unsuccessfully makes or opposes a motion to compel a response to interrogatories [or a demand for inspection], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Code Civ. Proc. §§ 2030.290(c) (interrogatories); 2031.300(c) (inspection demands).

Here, on 6/16/22, Plaintiff propounded his first set of Form Interrogatories – General, Special Interrogatories (Nos. 1-6), and Requests for Production of Documents (Nos. 1-36) on Defendant. Williams Decl., ¶ 2 (ROA 40, 42, and 44). To date, Plaintiff has received *no response* to the aforementioned discovery. *Id.* at ¶ 3.

As a result of defendant’s failure to serve responses to the requests, defendant has waived any objection to the interrogatories and requests, including one based on privilege or work product protection. Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demands).

Accordingly, Defendant is ordered to serve verified answers, without objections, to the aforementioned discovery within 30 calendar days of the notice of ruling.

Moreover, the Court **GRANTS** sanctions in the amount of \$560 against Defendant for each motion, for a total amount of \$1,680, to be paid within 30 calendar days of the notice of ruling.

		The Court further notes that it appears that Defendant has not been represented by counsel for over a year. A corporation must be represented by an attorney and cannot represent itself. <i>Gutierrez v. G&M Oil Co., Inc.</i>, 184 Cal. App. 4th 551, 564 (2010). “[I]t is more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected, and on such terms as are just in the sound discretion of the court.” <i>CLD Construction, Inc. v. City of San Ramon</i>, 120 Cal. App. 4th 1141, 1149 (2004). “[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.” <i>Id.</i> at 1150. The Court sets an OSC re: Status of Representation of Corporate Defendant for October 27, 2023 at 9:00 a.m. Plaintiff to give notice.
12	O’Kane vs. Radovich 2022-01276312	Motion to Compel Deposition (Oral or Written) filed by Kevin O’Kane on 8/25/23 Plaintiff Kevin O’Kane will and hereby does, move to Compel the deposition of Defendant Chaslav Radovich. Plaintiff requests sanctions in an amount no less than \$6,900 from Mr. Radovich, which request is made pursuant to California Code of Civil Procedure §§ 2023.010(d) (Failing to respond to submit to an authorized method of discovery), 2023.030(a) (monetary sanction is available for discovery misconduct), and 2025.450(g)(1) (failure to comply with deposition notice).

Here, Mr. Radovich agreed to sit for deposition on August 24, 2023, and MP served the Third Amended Notice on August 8, 2023 to secure that date. George Decl., ¶ 6. On August 21, 2023, three days before Mr. Radovich's scheduled deposition, counsel for MP received an email from Mr. Radovich's attorney, Michael Hensley, stating that Mr. Radovich would not appear. *Id.* ¶ 7. On that same date counsel emailed back and forth inquiring about the cancellation. *See* August 21 emails attached to George Decl.

Given the multiple attempts to obtain the 8/24 deposition date and Defendant's unilateral cancelling of the deposition without providing any alternative dates, granting the motion was warranted, *as well as sanctions*. The *untimely* opposition was not considered.

Subsequent to the instant motion being filed, however, the Court notes that the deposition in this dispute has been conducted on September 11, 2023, with a second session set for September 26.

Accordingly, the motion to compel deposition is **DENIED AS MOOT**.

The Court **GRANTS** sanctions and will order sanctions against Mr. Radovich in the amount of \$1,560 to be paid within 30 calendar days of notice of this ruling to Moving Party. Code Civ. Proc. § 2025.450.

Moving Party to give notice.

13	Ramirez vs. Little Onion, Inc. 2022-01290370	Motion for New Trial and Modification of Judgment filed by Betsy Ramirez on 8/24/23 Plaintiff Betsy Ramirez (“Plaintiff”) moves for new trial and/or modification of judgment. On July 31, 2023, Judge Oberholzer conducted a 585 hearing and proceeded with gathering evidence to enter requested default by Plaintiff. On August 9, 2023, Judge Oberholzer entered judgment “having reviewed the submitted 585 Default Packet, [and found] judgment for Betsy Ramirez against Little Onion, Inc. and Little Onion, LLC” <i>See</i> ROA 47. Presumably, since Judge Oberholzer awarded damages in an amount less than what was sought by Plaintiff, Plaintiff now wishes to revisit Judge Oberholzer’s order based on two things: (1) Plaintiff “suspects” an irregularity in the proceedings; and (2) that Judge Oberholzer “failed to provide any just cause” for reducing damages. <i>See</i> Motion at 3. Preliminarily, although a motion for new trial is typically heard by the judge who conducted the trial, Judge Oberholzer is unavailable for purposes of entertaining the instant motion. First, as to Plaintiff’s “suspicions” of irregularity, Plaintiff contends that it “suspects” that Judge Oberholzer “failed to consider Plaintiff’s declaration of damages and her counsel’s declaration for attorney fees.” Motion at 5. This contention is belied by the fact that Judge Oberholzer’s minute order of August 9, explicitly states that it “reviewed the submitted 585 Default Packet,” inclusive
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		of all supporting declarations and documents. ROA 47. Accordingly, there is no evidence to support any of Plaintiff's "suspicions of irregularity" and the Court is not persuaded that this contention forms any basis for a new trial. Second, Code of Civil Procedure section 657 specifically states: "A new trial <i>shall not be granted</i> . . . upon the ground of . . . inadequate damages, unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court [] clearly should have reached a different [] decision." (emphasis added). Such is not the case in this instance. Plaintiff contends that it received "inadequate damages," which is expressly contemplated by sec. 657 and is also not a basis for a new trial where, as here, there is <i>no evidence</i> that Judge Oberholzer "clearly should have reached a different decision." Accordingly, Plaintiff's motion for new trial and/or modification of judgment is DENIED. Plaintiff to provide notice.
14	Robicheaux vs. Rowshan 2022-01261647	1. Demurrer to Amended Complaint 2. Motion for Bifurcation filed by Newport Care MSO, LLC, Newport Care Medical Group, Inc., Top Surgical, LLC, Kasra Rowshan, Old Newport Group, LLC, Linden Properties, LLC on 8/24/23 I. Demurrer to Amended Complaint Defendant Linden Properties, LLC, and Defendants and Cross-Complainants Kasra Rowshan, M.D. ("Dr. Rowshan"), Newport

Care Medical Group, Inc. ("Newport Care"), Newport Care MSO, LLC (the "MSO"), Top Surgical, LLC ("Top Surgical"), and Old Newport Group, LLC ("Old Newport") (collectively, "Defendants") filed Demurrer to the second cause of action for promissory fraud against Dr. Rowshan and Newport Care and fourth cause of action for breach of contract against Dr. Rowshan.

First, Defendant's request for judicial notice is **DENIED**. Exhibits A-C are reasonably disputable. *Fremont Indemnity Co. v. Fremont General Corp.*, 148 Cal. App. 4th 97, 113-115 (2007) and Exhibits D-F are not relevant to the Demurrer.

Moreover, the Demurrer to the second cause of action on the grounds that Plaintiff fails to states facts sufficient to constitute a cause of action is **OVERRULED**.

"'Promissory fraud' is a subspecies of the action for fraud and deceit." *Lazar v. Superior Court*, 12 Cal. 4th 631, 638 (1996); Cal. Civ. Code § 1710(4). "A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud." *Id.*

"[P]romissory fraud requires proof of: (1) a promise made regarding a material fact without any intention of performing it; (2) the existence of the intent not to perform at the time the promise was made; (3) intent to deceive or induce the promisee to enter into a transaction; (4) reasonable reliance by the

promisee; (5) nonperformance by the party making the promise; and (6) resulting damage to the promise[e].” *Missakian v. Amusement Industry, Inc.*, 69 Cal. App. 5th 630, 654 (2021), review denied (Jan. 5, 2022) (citation omitted).

“[I]n a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege: (1) the defendant made a representation of intent to perform some future action, *i.e.*, the defendant made a promise; and (2) the defendant did not really have that intent at the time that the promise was made, *i.e.*, the promise was false.” *Beckwith v. Dahl*, 205 Cal. App. 4th 1039, 1060 (2012).

“To sufficiently plead the first requirement, that the defendant made a promise, the complaint must state ‘*facts* which show how, when, where, to whom, and by what means the representations were tendered.’” *Beckwith v. Dahl*, 205 Cal.App.4th 1039, 1060 (2012) (citing *Lazar v. Superior Court*, 12 Cal. 4th 631, 638 (1996)).

“As for the second requirement, the falsity of that promise is sufficiently pled with a general allegation the promise was made without an intention of performance.” *Beckwith v. Dahl* 205 Cal. App. 4th 1039, 1060 (2012). “Purely evidentiary matters—usually circumstantial evidence or admissions showing lack of that intention—should not be pleaded.” *Id.*
“Hence, the only necessary averment is the general statement that the promise was made without the intention to perform it, or that the defendant did not intend to perform it.” *Id.*

Importantly, “a fraud action is not barred when the allegedly fraudulent promise is unenforceable under the statute of frauds.” *Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.*, 55 Cal. 4th 1169, 1183 (2013) (citing *Tenzer v. Superscope, Inc.*, 39 Cal. 3d 18, 29 (1985)). This is because “a rule intended to prevent fraud, in that case the statute of frauds, should not be applied so as to facilitate fraud.” *Riverisland Cold Storage, Inc. v. Fresno-Madera Production Credit Assn.*, 55 Cal. 4th 1169, 1183 (2013).

The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. *Tarmann v. State Farm Mut. Auto. Ins. Co.*, 2 Cal. App. 4th 153, 157 (1991).

Here, the Court already ruled in its order on Defendants’ Motion for Judgment on the Pleadings that the second cause of action for promissory fraud was sufficiently pled. It does not appear that the allegations in the Second Amended Complaint have changed such that the Court should find differently when ruling on the present Demurrer.

As before, Plaintiff sufficiently alleges a promissory fraud cause of action. Plaintiff alleges that: (1) on February 26, 2021, Defendants Rowshan and Newport Medical Care Group, Inc. (Rowshan acting with his controlling interest) promised to enter into the Newport Care MSO operating agreement

consistent with the terms set forth in the Letter of Intent and common in the medical industry, SAC, ¶¶ 19-20, 39; (2) Defendants did not intend to perform these promises, SAC, ¶¶ 22-25, 30, and 4; (3) Defendants intended for Plaintiff to rely on these promises, SAC, ¶ 41; (4) Plaintiff reasonably relied on the promises by entering into the Letter of Intent and transferring his 50% interest in Newport Medical Care Group, Inc. based on their prior transactions, 6 years of business partnership, and 10 years of friendship, SAC, ¶¶ 21 and 42; and (5) Plaintiff was damaged in that he lost his interest in Newport Medical Care Group, Inc., which Plaintiff estimated to be worth \$22 million dollars. SAC, ¶¶ 43-45.

Although these allegations are not perfect, they are sufficient at the pleading stage. Accordingly, the Demurrer as to Plaintiff's second cause of action for promissory fraud against Rowshan and Newport Care on the grounds that the Second Amended Complaint fails to state facts sufficient to constitute a cause of action is **OVERRULED**.

Next, Defendants Demurrer to the second cause of action for promissory fraud against Dr. Rowshan and Newport Care and fourth cause of action for breach of contract against Dr. Rowshan on the grounds that it is barred by the Release in the Repurchase Agreement. The Repurchase Agreement is Exhibit A to the Letter of Intent. The interpretation and applicability of the Letter of Intent are at issue in this case and the Court will not enforce the Letter of Intent and attachment thereto at this time. The Demurrer is **OVERRULED**.

Plaintiff to give notice.

II. Motion for Bifurcation

Defendants filed a Motion to Bifurcate. The Motion is **GRANTED** as the Court finds that the ends of justice and interests of economy and efficiency would be best served by resolving whether the Letter of Intent and related attachments thereto are valid and enforceable. *See* Code Civ. Proc. § 598 and § 1048(b).

As currently pled, the Second Amended Complaint appears to argue that the Letter of Intent is an unenforceable agreement to agree while also argue that certain aspects of the Letter of Intent are enforceable. The Court finds that resolving this issue will inevitably streamline discovery and will promote the economy and efficiency of handling the litigation.

As such, the Motion is **GRANTED**. Phase 1 of this case shall be limited to whether the Letter of Intent and related attachments thereto are valid and enforceable. Thus, only the second cause of action for promissory fraud and third cause of action for breach of contract are at issue.

Since the Court finds that these causes of action will not implicate Plaintiff's Fifth Amendment Privilege, the discovery stay is lifted as to the second cause of action for promissory fraud and third cause of action for breach of contract *only*.

Defendants to give notice.

15	Tatarian vs. City of La Palma 2022-01294374	Motion to Strike Complaint filed by City of La Palma on 8/28/23 Respondent City of La Palma (“Respondent” or “City”) moves for an order striking Petitioner Sarkis Tatarian’s (“Petitioner”) First Amended Petition for Writ of Mandate pursuant to Code of Civil Procedure § 436(b) on the basis that the First Amended Petition was filed beyond the timeframe allowed by the Court. A party filing a motion to strike is required to meet and confer <i>in person</i> or <i>by telephone</i> with the party who filed the pleading subject to the motion to strike and file a declaration stating the means by which the meet and confer took place, pursuant to Code of Civil Procedure § 435.5(a). Respondent’s counsel sent Petitioner’s counsel a letter on August 8, 2023 demanding that Petitioner dismiss this action due to the failure to timely file an amended petition. Singh Thind Decl. ¶ 2. Petitioner’s counsel emailed back the same date stating that he was filing the First Amended Petition. <i>Id.</i> ¶ 3. On August 15, 2023, Respondent’s counsel sent a meet and confer letter asking Petitioner’s counsel to reach out to discuss the matter and Petitioner’s counsel did not respond. <i>Id.</i> ¶¶ 4-5. Because no meet and confer took place <i>in person</i> or <i>by telephone</i>, as statutorily required,

		the Motion to Strike is CONTINUED to October 23, 2023 at 9:00 a.m. Respondent's counsel is ORDERED to file and serve a meet and confer declaration showing that the requirements under § 435.5(a) have been satisfied no later than nine (9) court days before the continued hearing date. No further opposition or reply papers shall be filed. Respondent to give notice.
16	Meal Prep Kingz, LLC vs. Unity Farms Investment Group, LLC 2020-01152657	Motion to Compel Answers to Special Interrogatories filed by Joseph Fernandez on 8/23/23 Continued to 12/11/2023